

22STCV09855 22STCV09855

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-21

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Case Number: 22STCV09855 Hearing Date: July 21, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Tamara Jones

, et al.;

Plaintiffs,

vs.

City of Los Angeles,

et al.,

Defendants.

Case No.:

22STCV09855

Hearing Date:

July 21, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION
FOR SUMMARY ADJUDICATION

MOVING PARTY: Defendant Los Angeles County
Metropolitan Transportation Authority

RESPONDING
PARTY: Plaintiff Tamara Jones

Motion for Summary
Adjudication

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

EVIDENTIARY
OBJECTIONS

The court
declines to rule on the evidentiary objections raised by the parties pursuant
to Code of Civil Procedure section 437c subdivision (q).

DISCUSSION

Defendant Los
Angeles County Metropolitan Transportation Authority ("Defendant") moves for
summary adjudication of issues as to whether the decedent, Onna Sophoa Cooper
("Decedent"), violated Vehicle Code sections 21657, 23152, and 21229.

First,
Defendant's motion seeks summary adjudication of an issue which does not "completely
dispose[] of a cause of action, an affirmative defense, a claim for damages, or

an issue of duty.” (Code Civ. Proc. § 437c subd. (f)(1).) Defendant’s notice of motion also does not comply with the requirements of California Rules of Court, rule 3.1350(b), which states, in relevant part: “[i]f summary adjudication is sought, . . . the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion”

Second, even if the court were to construe this motion as seeking summary adjudication of one or more affirmative defenses that Decedent violated these statutes, those affirmative defenses were not pled in the Answer that was operative on December 15, 2025, when this motion was filed. It would be a violation of Plaintiff’s right to due process to grant summary adjudication on affirmative defenses that are not pled in the Answer. (California Concrete Co. v. Beverly Hills Savings & Loan Association (1989) 215 Cal.App.3d 260, 273-74.)

Third, Defendant filed its First Amended Answer on March 23, 2026. Amendment of the pleading on which a motion for summary adjudication is based moots that motion. (See State Compensation Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124, 1130 [“an amended complaint supersedes all prior complaints”], 1131 [“Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint. Thus, once an amended complaint is filed, it is error to grant summary adjudication on a cause of action contained in a previous complaint”] [internal citations omitted].)

For the reasons stated above, the court denies Defendant’s motion for summary adjudication because it is procedurally improper.

ORDER

The court denies defendant Los Angeles County Metropolitan Transportation Authority’s motion for summary adjudication of issues.

The court orders plaintiff Tamara Jones to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 21, 2026

Robert B. Broadbelt III

Judge of the Superior Court